

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY  
SENATE AMENDMENTS TO S.B. 1672  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 29, article 1, Arizona Revised  
3 Statutes, is amended by adding section 36-2907.17, to read:

4 36-2907.17. Prescription antipsychotic drugs; coverage;  
5 definitions

6 A. BEFORE PROVIDING COVERAGE OF A PRESCRIPTION ANTIPSYCHOTIC DRUG  
7 THAT IS PRESCRIBED TO A MEMBER WHO IS AT LEAST EIGHTEEN YEARS OF AGE AND  
8 WHO HAS A SERIOUS MENTAL ILLNESS DETERMINATION FOR WHICH THE PRESCRIPTION  
9 ANTIPSYCHOTIC DRUG IS APPROVED BY THE UNITED STATES FOOD AND DRUG  
10 ADMINISTRATION AS DESCRIBED ON THE PRESCRIPTION ANTIPSYCHOTIC DRUG'S  
11 APPROVED LABELING, THE ADMINISTRATION AND ITS CONTRACTORS:

12 1. EXCEPT FOR THE PROCESS DESCRIBED IN PARAGRAPH 2 OF THIS  
13 SUBSECTION, MAY NOT IMPOSE A PRIOR AUTHORIZATION REQUIREMENT OR OTHER  
14 PROCESS THAT CONDITIONS, DELAYS OR DENIES THE DELIVERY OF THE PRESCRIPTION  
15 ANTIPSYCHOTIC DRUG TO THE MEMBER BY APPLYING PREDETERMINED CRITERIA BY THE  
16 ADMINISTRATION OR ITS CONTRACTOR FOR COVERED PRESCRIPTION DRUGS.

17 2. MAY IMPOSE A PROCESS, INCLUDING A STEP THERAPY PROTOCOL,  
18 REQUIRING THAT THE MEMBER SHOW A FAILURE TO SUCCESSFULLY RESPOND TO NOT  
19 MORE THAN TWO DISTINCT PRESCRIPTION ANTIPSYCHOTIC DRUGS.

20 B. THE ADMINISTRATION AND ITS CONTRACTORS SHALL GRANT A MEMBER OR  
21 THE MEMBER'S HEALTH CARE PROVIDER THE ABILITY TO BYPASS A STEP THERAPY  
22 PROTOCOL BY PROVIDING A HISTORY OF THE MEMBER'S FAILURE TO SUCCESSFULLY  
23 RESPOND TO TWO DISTINCT PRESCRIPTION ANTIPSYCHOTIC DRUGS ON THE MEMBER'S  
24 CURRENT OR PREVIOUS HEALTH BENEFIT PLAN.

25 C. ANY STEP THERAPY PROTOCOL OR OTHER PROCESS ADMINISTERED IN  
26 ACCORDANCE WITH SUBSECTION A, PARAGRAPH 2 OF THIS SECTION MUST BOTH:

1           1. BE ADJUDICATED ELECTRONICALLY AND IN REAL TIME.

2           2. CONSIDER A MEMBER TO HAVE TRIED TWO PRESCRIPTION ANTIPSYCHOTIC  
3 DRUGS IF THE MEMBER HAS TWO PAID CLAIMS FOR TWO DISTINCT PREFERRED  
4 ANTIPSYCHOTIC DRUGS [THAT WERE PRESCRIBED IN A NONEMERGENCY OR OUTPATIENT  
5 TREATMENT WITHIN THE PREVIOUS FIVE YEARS].

6           D. THIS SECTION APPLIES ONLY TO A PRESCRIPTION ANTIPSYCHOTIC DRUG  
7 WHOSE USE IS SUPPORTED BY PEER-REVIEWED, EVIDENCE-BASED LITERATURE.

8           E. THIS SECTION APPLIES TO PRESCRIPTION DRUG COVERAGE THAT IS PAID  
9 EITHER ON A FEE-FOR-SERVICE BASIS OR THROUGH A PREPAID CAPITATED HEALTH  
10 SERVICES CONTRACT UNDER THE SYSTEM.

11          F. THIS SECTION DOES NOT:

12           1. PROHIBIT THE ADMINISTRATION FROM CONTRACTING WITH A MANAGED CARE  
13 ORGANIZATION FOR PHARMACEUTICAL SERVICES OFFERED UNDER THE SYSTEM PURSUANT  
14 TO SECTION 36-2904 IF THE CONTRACT COMPLIES WITH THIS SECTION.

15           2. PROHIBIT OR DISCOURAGE THE USE OF A GENERIC DRUG.

16           3. PREVENT THE ADMINISTRATION FROM PERFORMING A DRUG UTILIZATION  
17 REVIEW THAT IS NECESSARY FOR PATIENT SAFETY OR TO ENSURE THAT THE  
18 PRESCRIBED USE IS FOR A MEDICALLY ACCEPTED INDICATION, AS REQUIRED BY  
19 SECTION 1927 OF THE SOCIAL SECURITY ACT.

20          G. FOR THE PURPOSES OF THIS SECTION:

21           1. "FAILURE TO SUCCESSFULLY RESPOND" MEANS A DETERMINATION, BASED  
22 ON CLINICALLY APPROPRIATE GUIDELINES, THAT A PATIENT HAS FAILED ON A  
23 MEDICATION, INCLUDING A LACK OF EFFICACY DURING A SIX-WEEK MEDICATION  
24 TRIAL, AN ALLERGIC REACTION, INTOLERABLE SIDE EFFECTS, SIGNIFICANT  
25 DRUG-TO-DRUG INTERACTIONS OR A KNOWN INTERACTING GENETIC POLYMORPHISM THAT  
26 PREVENTS SAFE PREFERRED MEDICATION DOSING AS ATTESTED TO BY THE PATIENT'S  
27 HEALTH CARE PROVIDER.

28           2. "HEALTH BENEFIT PLAN" MEANS A POLICY, CONTRACT, CERTIFICATE OR  
29 AGREEMENT ENTERED INTO, OFFERED BY OR ISSUED BY AN INSURER OR BY THE  
30 ADMINISTRATION TO PROVIDE, DELIVER, ARRANGE FOR, PAY FOR OR REIMBURSE ANY  
31 COSTS OF HEALTH CARE SERVICES.

32           3. "HEALTH CARE PROVIDER" MEANS A HEALTH CARE PROVIDER WHO IS  
33 LICENSED PURSUANT TO TITLE 32 AND WHO HAS PRESCRIPTION AUTHORITY PURSUANT  
34 TO TITLE 32.

35           4. "INSURER" MEANS ANY PERSON THAT IS ENGAGED IN MAKING ANY  
36 HOSPITAL, HEALTH OR MEDICAL EXPENSE INSURANCE POLICY, HOSPITAL OR MEDICAL  
37 SERVICE CONTRACT, EMPLOYEE WELFARE BENEFIT PLAN, CONTRACT OR AGREEMENT  
38 WITH A HEALTH MAINTENANCE ORGANIZATION OR A PREFERRED PROVIDER  
39 ORGANIZATION OR HEALTH AND ACCIDENT INSURANCE POLICY OR ANY OTHER  
40 INSURANCE CONTRACT OF THIS TYPE, INCLUDING A GROUP INSURANCE PLAN.

41           5. "PRESCRIPTION DRUG" MEANS ANY PRESCRIPTION MEDICATION AS DEFINED  
42 IN SECTION 32-1901.

Senate Amendments to S.B. 1672

- 1        Sec. 2. Effective date
- 2        This act is effective from and after December 31, 2026.
- 3 Enroll and engross to conform
- 4 Amend title to conform

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